

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
August 24, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

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- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2023-01300740 Medina vs. Kindness General Contractors, LLC	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed.

		Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2023-01359910 Hotchkiss vs. Amarik Properties, Inc.	The tentative ruling is to continue the Final Report Hearing to December 7, 2026 at 1:30 p.m. to clarify that the settlement has been administered in accordance with the court’s October 13, 2025 Order granting final approval and the settlement agreement that the court approved. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The escalator clause in the parties’ settlement agreement states: 3. Escalator Clause. The Parties have agreed to the terms set forth herein based on their estimate that the PAGA Members have worked 2,700 pay periods during the PAGA Period. However, should the Administrator determine that actual number of pay periods worked by the PAGA Members is more than 10% larger than this estimate (i.e. more than 2,970 pay periods), then Defendant shall have the option of either: (a) increasing the MSA pro rata for every additional pay period worked by the PAGA Members above that 10% threshold (i.e. if the actual number of pay periods worked by the PAGA Members is 11% larger than this estimate, the MSA shall be increased by 1%) or (b) ending the PAGA Period on the date that the number of pay periods worked by the PAGA Members equals 2,970, in which case no adjustment to the MSA shall be made. (Settlement § III(3).) The settlement administrator states that the escalator clause was triggered because the total number of Pay Periods was four thousand and eighty-two (4,082), which was more than 10% over the estimated 2,970 pay periods. The administrator explained that the 41.19% excess results in a required increase to the Gross Settlement Amount of \$20,592.59. However, the settlement administrator states that Defendant deposited only the original Gross Settlement Amount of \$70,407.41, not the escalated amount totaling \$90,000.00. Further, the administrator states that “[t]he Court approved Plaintiff’s Counsel attorneys’ fees (\$21,122.22 plus Escalator Clause Fee of \$6,177.78),” but the court did no such thing. The court approved a fixed amount of attorney’s fees of \$21,122.22 and never authorized any increase in attorney’s fees based on the escalator clause. (ROA 62, 75 [both stating that the court approved \$21,122.22 in attorney’s fees].) There is also no language in the settlement agreement that provides for an increase in attorney’s fees if the escalator clause is triggered.

		Further, the deposit amount of \$70,407.41, and the distribution of attorneys' fees (\$21,122.22 plus Escalator Clause Fee of \$6,177.78), attorney costs (\$14,397.85), Enhancement Payment to Plaintiff (\$1,000.00), and Administration Costs (\$3,998.49), result in a Net Settlement Amount of \$23,711.07. This amount should have been divided 75% to the LWDA (\$17,783.30), and 25% to aggrieved employees (\$5,927.77). However, the settlement administrator distributed \$17,992.19 to the LWDA and \$5,974.06 to the aggrieved employees. These numbers do not add up. As a result of Defendant's failure to deposit the increased amount based on the escalator clause and the administrator's unauthorized distribution of additional attorney's fees to Plaintiff's counsel, as well as the math miscalculations above, the administrator's calculation after the escalator clause somehow triggered a decreased amount distributed to aggrieved employees from the \$7,472.21 approved by the court in its October 13, 2025 Order, to only \$5,974.06. The following should have been the settlement distribution amounts after the escalator clause was applied: · GSA: \$90,000.00 · Attorney's fees: \$21,122.22 · Attorney costs: \$14,397.85 · Enhancement award: \$1,000.00 · Administrator costs: \$3,998.49 · NSA/PAGA Penalties: \$49,481.44 - o 75% PAGA penalties to LWDA: \$37,111.08 - o 25% PAGA penalties to aggrieved employees: \$12,370.36 The parties and the administrator must explain the discrepancies between the court's final approval order and the actions taken by the settlement administrator. The parties must also provide a proposal as to how the parties plan to ensure that the correct amounts will be distributed to the LWDA (\$37,111.08) and to the aggrieved employees (\$12,370.36). Plaintiff is ordered to give notice of this ruling to Defendant.
3	30-2024-01380407 Villanueva vs. Newport Pacific Capital Co., Inc.	The tentative ruling is to continue the hearing on Plaintiff Joseph Villanueva's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to December 14, 2025 at 1:30 p.m.

		Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The moving papers contain conflicting information regarding the number of aggrieved employees included in this settlement. The papers indicate either 141 aggrieved employees or 370 aggrieved employees. (Sung Dec. ¶ 21 [141]; <i>id.</i> ¶ 19 [370].) Further, as the PAGA Period end date has changed, neither of these numbers may be accurate. The court needs the accurate number of aggrieved employees. Further, the exposure analysis and average payment calculations should be based on the actual number of aggrieved employees. The PAGA Release in Section III(7) of the settlement agreement must be amended. The court will not approve a PAGA Release that directly releases claims by the State of California, or contains improper injunctive language. The PAGA Release must be amended to state: Plaintiff agrees that upon entry of an Order approving the Settlement and full payment by Defendant of the Gross Settlement Amount, all Aggrieved Employees, including Plaintiff, on behalf of themselves and their respective former and current representatives, agents, attorneys, heirs, administrators, successors, and assigns, and the State of California, will release any and all PAGA Released Claims against the Released Parties that arose during the PAGA Period. Upon entry of the Order approving the Settlement and judgment entered thereon, as well as full payment by Defendant of the Gross Settlement Amount, Plaintiff and all Aggrieved Employees may be barred as a matter of law from pursuing any and all of the PAGA Released Claims that arose during the PAGA Period against the Released Parties. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount or
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		\$102,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. Plaintiff must file an amended [Proposed] Order and Judgment in accordance with this ruling, and with the new PAGA Period. (Mondragon Dec. ¶ 4 [indicating the parties have agreed to a shortened PAGA Period].) Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
4	30-2024-01416987 Portillo vs. Fujifilm Irvine Scientific, Inc.	The tentative ruling is to continue Plaintiffs Concepcion Portillo and Yasmine Villa's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The Class and PAGA Periods are defined as ending on the date the Court enters an order preliminarily approving the settlement. However, the escalator clause in Paragraph 4(F) of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, have

		the class notice include the adjusted end date, and not be sent to non-participants. The court is inclined to grant approval of an attorneys' fees request of 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs must provide documentation and support for any request higher than this percentage at the final approval stage. The allocation of only 25% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The court will not approve a direct release of claims by the LWDA. Thus Paragraph 3(F) of the settlement agreement must be amended to state: "Upon the Effective Date of the Releases, all Settlement Class Members shall be deemed to have, and by operation of Judgment shall have, released, waived and relinquished the Released Class Claims, and Plaintiffs, on behalf of themselves and the LWDA, and all PAGA Employees shall be deemed to have, and by operation of the Judgment shall have, released, waived and relinquished the PAGA Released Claim." (Settlement ¶ 3(F).) The following corrections must be made to the class notice: • The end of the first paragraph on page 2 of the class notice should be corrected to remove the "(2)" as there is no (1): ". . . Plaintiffs also seek civil penalties under the California Private Attorneys General Act ("PAGA") for all individuals classified as non-exempt employees ("Aggrieved Employees") who were employed by Defendant in California during the period of time starting on August 6, 2023 and ending on [insert date of preliminary approval] ("PAGA Period")." • Section (3)(2) on page 3 of the class notice should be captioned "Deductions from Gross Settlement Subject to Final Approval by the Court," not "Court Approved Deductions from Gross Settlement." • There is no Page 12 to the class notice, so the pages should be numbered "X of 11." Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
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5	30-2024-01426948 Olivo vs. ServiceLink Services, LLC	Plaintiffs Kayla Olivo and Aaron Oman’s (collectively, “Plaintiffs”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT the following correction is made to the class notice before it is sent to the class members and aggrieved employees: Class members and aggrieved employees may object to the settlement amount allocated to PAGA penalties. Thus, on the left column, second row of the table on Page 3 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” should instead state “Participating Class Members Can Object to the Class Settlement.” Plaintiffs’ counsel states that the summary table was amended to state: “Participating Class Members Can Object to the Class Settlement.” (Supp. Bokhour Dec. ¶ 16, Exs. D-E.) However, that change was not made to the notice. A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs’ attorneys to support a lodestar cross-check, detailed plaintiffs’ attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs is ordered to give notice of this ruling to the LWDA and Defendant.
6	30-2024-01412038 Pagano vs. Yani Construction Corp	Defendant Arash Firouzi’s (“Firouzi”) Demurrer to Plaintiffs Mauro Pagano and Vita Manzoli’s (collectively, “Plaintiffs”) Second Amended Complaint (“SAC”) is SUSTAINED WITHOUT LEAVE TO AMEND IN PART as to the Second Cause of Action and OVERRULED IN PART as to the Seventh Cause of Action. IT IS ORDERED THAT Firouzi shall file and serve an Answer to the remaining Second Amended Complaint within fourteen (14) days of this ruling. As a threshold matter, Plaintiffs argue that Defendant Firouzi failed to meet and confer in person, by telephone or by video conference as required by CCP § 430.41(a) and instead only sent a meet and confer letter. (Opp. at p. 10.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a

		demurrer.” (CCP § 430.41(a)(4).) Thus, while Defendant Firouzi and his counsel are admonished for failing to adequately meet and confer before bringing this Motion and are warned of the possibility of future sanctions, it is not grounds for overruling the demurrer. This action arises from alleged construction defects and product defects that damaged Plaintiffs’ property in Newport Beach. The court previously sustained Firouzi’s demurrer to Plaintiffs’ First Amended Complaint as to the Second and Seventh Causes of Action with leave to amend. (ROA 143.) In this Demurrer to Plaintiffs’ SAC, Firouzi asserts that Plaintiffs fail to state a claim as to the Second and Seventh Causes of Action in Plaintiffs’ SAC, and that the claims are uncertain. The court finds that Plaintiffs have failed to cure the defects as to the Second Cause of Action, but have sufficiently pled the Seventh Cause of Action. <u>Second Cause of Action (Breach of Implied Warranty of Merchantability)</u> In the court’s previous ruling on Firouzi’s demurrer to the FAC, the court stated in relevant part: Third, Firouzi contends that the Second Cause of Action for breach of implied warranty of merchantability fails because the requisite elements are not pled. “[A] warranty that the goods shall be merchantable is implied in a contract for their sale if the seller is a merchant with respect to goods of that kind.” (Cal. Com. Code § 2314(1) [emphasis added].) “Merchant” means a person who deals in goods of the kind or otherwise by his occupation holds himself out as having knowledge or skill peculiar to the practices or goods involved in the transaction or to whom such knowledge or skill may be attributed by his employment of an agent or broker or other intermediary who by his occupation holds himself out as having such knowledge or skill. (Cal. Com. Code § 2104(1).) “Goods to be merchantable must be at least such as (a) Pass without objection in the trade under the contract description; and (b) In the case of fungible goods, are of fair average quality within the description; and (c) Are fit for the ordinary purposes for which such goods are used; and (d) Run, within the variations permitted by the agreement, of even kind, quality and quantity within each unit and among all units involved; and (e) Are adequately
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		contained, packaged, and labeled as the agreement may require; and (f) Conform to the promises or affirmations of fact made on the container or label if any.” (Cal. Com. Code § 2314(2).) The FAC alleges that Firouzi and Defendants “were and now are the merchants and sellers of newly constructed housing such as the Subject Property, and/or products used in the construction,” and they “impliedly warranted that [the property] was properly construction and/or that said products were merchantable as of the time they were provided.” (FAC ¶¶ 28-29.) Plaintiffs allege that “[t]he Subject Property and said products used in the construction thereof was not of the same quality as those generally acceptable in the trade, was not fit for the ordinary purposes for which such goods are used, and/or did not conform to the quality established by the parties’ prior dealings or by usage of trade.” (FAC ¶ 30.) However, there is no allegation of a contract for the sale of any products, and no allegations of any contract between Plaintiffs and Firouzi. Plaintiffs argue that, as the intended owners of the property, they are intended third party beneficiaries of Defendants’ construction contract but fails to plead facts to show that the contract was for a sale of goods and fails to plead facts to show that Plaintiffs are third-party beneficiaries of such a contract. Thus, the court SUSTAINS WITH LEAVE TO AMEND the demurrer to the Second Cause of Action to allow Plaintiffs to adequately plead facts to demonstrate a contractual basis for the implied warranty of merchantability. (ROA 143.) As stated in the previous FAC, “PLAINTIFFS purchased the Subject Property from NIMA pursuant to New Construction Purchase Agreement dated October 16, 2023, for a total price of \$6,500,000.” (SAC ¶ 15.) As previously alleged, Plaintiffs assert that Firouzi “was the designer and/or construction manager of the Subject Property” (SAC ¶ 5), and a “merchant[] and seller[] of newly constructed housing such as the Subject Property, and/or products used in the construction thereof.” (SAC ¶ 28 [emphasis added].) In the SAC, Plaintiffs now allege that Firouzi is a “developer, builder, designer, and/or general contractor of the Subject
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		Property, retained DOES 21 through 50, inclusive, as subcontractors pursuant to written and/or oral subcontracts to provide . . . materials for the construction of the Subject Property,” which “were made expressly for the benefit of PLAINTIFFS, who were the intended purchasers and occupants of the Subject Property.” (SAC ¶ 29 [emphasis added].) “PLAINTIFFS are further informed and believe and thereon allege that a motivating purpose of said contracts was to provide PLAINTIFFS with a residence constructed in a workmanlike manner, in compliance with applicable building standards, and free from construction defects, including defects in workmanship, materials, waterproofing, and installation of building components.” (<i>Id.</i> ¶ 31 [emphasis added].) Plaintiffs allege that Firouzi “at the time and place of the sale of the construction at the Subject Property, and/or the products used in the construction Subject Property, impliedly warranted that it was properly construction [sic] and/or that said products were merchantable as of the time they were provided.” (<i>Id.</i> ¶ 32 [emphasis added].) Plaintiffs contend that “[t]he Subject Property and said products used in the construction thereof was not of the same quality as those generally acceptable in the trade, was not fit for the ordinary purposes for which such goods are used, and/or did not conform to the quality established by the parties’ prior dealings or by usage of trade.” (<i>Id.</i> ¶ 33 [emphasis added].) Plaintiffs’ SAC alleges no contract for the sale of goods between Firouzi and Plaintiffs. Instead, Plaintiffs have now alleged unspecified contracts for the sale of products by unnamed subcontractors to Firouzi for which Plaintiffs claim they were the intended third-party beneficiaries. This allegation is that the subcontractors were contracted to provide materials, not that Firouzi provided the materials for the construction project. Thus, Plaintiffs have still failed to allege any contract for the sale of goods in which Firouzi is the merchant or seller. If Plaintiff wishes to allege a claim of breach of implied warranty of merchantability against Firouzi, Plaintiffs must allege a contract in which Firouzi acted as the merchant/seller of goods. Plaintiffs also fail to allege facts showing that they are third-party beneficiaries to these alleged subcontracts for the sale of goods. “The test in deciding whether a contract inures to the benefit of a third person is whether an intent to so benefit the third person appears from the terms of the agreement[.]” (<i>Martin v. Bridgeport Cmty. Assn., Inc.</i> (2009) 173 Cal. App. 4th 1024, 1034.) “The fact that a third party is incidentally named in the contract, or that the contract, if carried out according to its terms,
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	would inure to his benefit, is not sufficient to entitle him to enforce it.” (<i>Id.</i>) Here, there are no allegations as to the terms of the agreement to suggest that Plaintiffs were the intended beneficiaries of the alleged subcontracts. In addition, Plaintiffs’ allegations based on information and belief are inadequately pled. “[P]laintiff may allege on information and belief any matters that are not within his personal knowledge, <i>if he has information leading him to believe that the allegations are true . . .</i> and thus a pleading made on information and belief is insufficient if it ‘merely assert[s] the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (<i>Gomes v. Countrywide Home Loans, Inc.</i> (2011) 192 Cal. App. 4th 1149, 1158–59.) Here, Plaintiffs alleged purported subcontracts for sale of goods on information and belief (SAC ¶¶ 29-31), but fail to allege any basis for believing that these subcontracts exist or were intended for their benefit. The only allegation as to Firouzi is that he provided services, not goods. “[T]he well settled rule in California is that where the primary objective of a transaction is to obtain services, the doctrines of implied warranty and strict liability do not apply.” (<i>Allied Props. v. John A. Blume & Assocs.</i> (1972) 25 Cal. App. 3d 848, 855.) A service provider is “not a seller of property who obligated himself as part of his bargain to convey property in the condition represented.” (<i>Id.</i>) Service providers “have a duty to exercise the ordinary skill and competence of members of their profession, and a failure to discharge that duty will subject them to liability for negligence.” (<i>Id.</i>) “Those who hire such persons are not justified in expecting infallibility, but can expect only reasonable care and competence.” (<i>Id.</i>) “They purchase service, not insurance.” (<i>Id.</i>) As there are no allegations that Firouzi did anything other than provide a service to Plaintiffs, there are no grounds for Plaintiffs to assert a claim for breach of the implied warranty of merchantability against him. Based on the foregoing, despite the opportunity to cure the defects in the complaint, Plaintiffs have failed to do so and offer no basis in which Plaintiffs could cure these deficiencies. Therefore, the court SUSTAINS WITHOUT LEAVE TO AMEND Firouzi’s Demurrer as to the Second Cause of Action as to Firouzi. <u>Seventh Cause of Action (Violation of Civil Code section 895)</u>
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		In the court’s previous ruling on Firouzi’s demurrer to the FAC, the court stated in relevant part: Fifth, Firouzi argues that the Seventh Cause of Action for violation of Civil Code section 895 fails because it is not pled with requisite particularity for a statutory claim. The FAC alleges that “Defendants, and each of them, violated the applicable standards set forth under Civil Code section 896, et seq. PLAINTIFFS are informed and believe and thereon allege that that said violations arise out of, pertain to, or are related to, the construction of the Subject Property.” (FAC ¶ 56.) No further facts are pled as to what violations and what standards are at issue. “[S]tatutory causes of action must be pleaded with particularity,” and it is unclear here what specific standards set forth under the Right to Repair Act were violated by defendants and specifically how the standards were violated by Defendants’ conduct so as to state this claim. (Covenant Care, Inc. v. Superior Ct. (2004) 32 Cal. 4th 771, 790.) Thus, the court SUSTAINS WITH LEAVE TO AMEND the demurrer as to the Seventh Cause of Action In the SAC, Plaintiffs now allege: 1. Defendants allowed doors and/or door systems at the Subject Property to permit unintended water to pass beyond, around, or through the doors or their designed or actual moisture barriers, in violation of Cal. Civ. Code § 896(a)(1) 2. Defendants allowed windows, patio doors, deck doors, and/or their systems at the Subject Property to permit water to pass beyond, around, or through the windows, patio doors, deck doors, or their designed or actual moisture barriers, in violation of Cal. Civ. Code § 896(a)(2) 3. Defendants allowed roofs, roofing systems, chimney caps, ventilation components, and/or related systems at the Subject Property to permit water to enter the structure or pass beyond, around, or through designed or actual moisture barriers, in violation of Cal. Civ. Code § 896(a)(4). 4. Defendants installed hardscape, irrigation systems, landscaping systems, and/or drainage systems in such a way as to cause water or soil erosion to enter into or come
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		in contact with the structure and cause damage to other building components, in violation of Cal. Civ. Code § 896(a)(9). 5. Defendants allowed the lines and components of the plumbing system, sewer system, and/or utility systems at the Subject Property to leak, in violation of Cal. Civ. Code § 896(a)(14). 6. Defendants installed stucco, exterior siding, exterior walls, and/or other exterior wall finishes and fixtures, including related systems, in such a way as to allow unintended water to pass into the structure or beyond, around, or through the designed or actual moisture barriers of the system, in violation of Cal. Civ. Code § 896(a)(10). To the extent applicable, Defendants also caused the stucco, exterior siding, and/or exterior walls to allow excessive condensation to enter the structure and damage another component, in violation of Cal. Civ. Code § 896(a)(11). 7. Defendants allowed showers, baths, and/or related waterproofing systems and/or the waterproofing system behind or under ceramic tile and tile countertops to leak water into interior walls, flooring systems, or other components, in violation of Cal. Civ. Code § 896(a)(17) and Cal. Civ. Code § 896(a)(18). (SAC ¶ 59.) Firouzi’s main complaint is that the allegations are not specific to him and instead allege that “Defendants” collectively violated certain statutory requirements. “A plaintiff alleging [a statutory violation] . . . must state with reasonable particularity the facts supporting the statutory elements of the violation.” (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal. App. 4th 612, 619.) A demurrer is properly sustained when the “complaint identifies no particular section of the statutory scheme which was violated and fails to describe with any reasonable particularity the facts supporting violation.” (<i>Id.</i>) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Id.</i> at 616.) Further, “[l]ess specificity is required when ‘it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy[.]’” (<i>Lauckhart v. El Macero Homeowners Assn.</i> (2023) 92 Cal. App. 5th 889, 904.)
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		Here, Plaintiffs have alleged the violations at issue with sufficient particularity against Defendants collectively. As to the specific role each Defendant played in the violations, that is an issue of fact more likely within Defendants’ knowledge than Plaintiffs, and may be clarified through discovery rather than pleadings. Plaintiffs have alleged sufficient facts to put Firouzi and the other Defendants on notice as to the claim against them. Firouzi also complains that the SAC fails to plead ultimate facts showing compliance with required prelitigation procedures. However, Plaintiffs allege in the SAC: PLAINTIFFS are informed and believe and thereon allege that Defendants failed to comply with the requirements set forth in Civil Code section 912 and therefore are not entitled to the pre-litigation procedures set forth in Civil Code section 895, et seq., and/or pursuant to Civil Code section 915, that Defendants have “elected not to engage in, follow, nor be bound by Civil Code sections 910-938.” Accordingly, PLAINTIFFS are informed and believe and thereon assert that they are released from the procedural requirements set forth in Civil Code section 895, et seq., and are therefore permitted to proceed with the filing of this Complaint. (SAC ¶ 61.) To the extent Firouzi disputes these facts, that is not an issue to be resolved at the pleading stage. In reply, Firouzi argues for the first time that Civil Code § 936 extends the Right to Repair Act to design professionals only “to the extent that [they] caused, in whole or in part, a violation of a particular standard as the result of a negligent act or omission or a breach of contract.” (Reply at p. 6.) However, as Plaintiffs have had no opportunity to respond, the court declines to reach this issue. Based on the foregoing, the court overrules Firouzi’s Demurrer as to the Seventh Cause of Action. Defendant Firouzi is ordered to give notice of this ruling.
9	30-2025-01535559 Wagner vs. Anaheim Arena Management, LLC	Defendant Anaheim Arena Management, LLC’s (“Defendant”) Motion to Compel Individual Arbitration of Plaintiff Nicholas Wagner’s (“Plaintiff”) Claims and Dismiss Action is DENIED. The court OVERRULES Defendant’s objections to Plaintiff Nicholas Wagner’s Declaration as there is sufficient foundation

	for his statements, and Defendant’s objections are essentially disputes as to the credibility and merit of Plaintiff’s statements, not their admissibility. The court declines to rule on Defendant’s objection to Plaintiff’s counsel, Brett Szmanda’s Declaration, as his description of the checklist document is irrelevant to the court’s ruling. The court concludes that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff. (CCP § 1281.2.) Defendant provides the declaration of Angel Montes, Vice President of Talent Acquisition & Team Member Experience for Defendant, who states that Plaintiff “signed a Mutual Agreement to Arbitrate Claims.” (Montes Dec. ¶ 2, Ex. 1.) While Plaintiff challenges the date listed on the arbitration agreement as August 28, 2021, when the agreement was signed on August 26, 2021, the court reads the date written in the signature section as August 26, 2021. (<i>Id.</i> at p. 3.) Further, Plaintiff does not dispute that it is his signature on the document. (Wagner Dec. ¶ 13 [“I recognize the signature on that document as mine . . .”].) It is undisputed that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. “The arbitration agreement states: “The parties agree that this Agreement is governed by the Federal Arbitration Act. 9 U.S.C. §§ 1, et seq. The parties also understand and agree that the Company is engaged in transactions involving interstate commerce.” (Montes Dec., Ex. 1.) Defendant’s business also involves interstate commerce as they use vendors outside of California, contract with performers from outside of California, and attendees from outside of California attend its events. (Montes Dec. ¶ 11.) The court finds that these facts demonstrate that Defendant’s business activities substantially affect interstate commerce, and therefore the FAA applies to the subject arbitration agreement. The court also finds that the subject arbitration agreement, read together with the CONFIDENTIALITY & PROPRIETARY RIGHTS AGREEMENT (“C&P Agreement”) signed by Plaintiff during onboarding along with the arbitration agreement, is unconscionable and unenforceable. In <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to
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	invalidate arbitration agreements without contravening” the FAA’ or California law.” (<i>Id.</i> at 125; <i>accord AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339.) “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Id.</i>) “But they need not be present in the same degree.” (<i>Id.</i>) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (<i>Id.</i>) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (<i>Id.</i>) <u>Procedural Unconscionability</u> “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion.” (<i>Armendariz</i>, 24 Cal. 4th at 113.) “The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (<i>Id.</i>) Although adhesion alone “generally indicates only a low degree of procedural unconscionability,” the potential for overreaching in the employment context “warrants close scrutiny of the contract’s terms.” (<i>Stoker v. Blue Origin, LLC</i> (2026) 120 Cal. App. 5th 91, 106.) Here, the arbitration agreement was a form agreement, and one of twenty documents provided to Plaintiff during the onboarding process, which Plaintiff “understood that we were expected to complete and return the documents that day.” (Wagner Dec. ¶¶ 4-5.) Plaintiff states that it was not an agreement he felt he “could independently accept or reject.” (<i>Id.</i> ¶ 6.) He states: “No one told me that signing the arbitration document was optional or that I could refuse to sign it and still be hired and scheduled normally.” (<i>Id.</i> 10.) Indeed, no language in the arbitration agreement itself indicates that it is optional notwithstanding Defendant’s claim
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		that some of its employees remain employed without signing the agreement. (Montes Dec. ¶ 10, Ex. 1.) Thus, the court finds that Plaintiff has established some level of procedural unconscionability associated with the subject arbitration agreement. <u>Substantive Unconscionability</u> The court also finds that Plaintiff has established several terms in the subject arbitration agreement and C&P Agreement that establish a high level of substantive unconscionability. First, the scope of the arbitration agreement and the claims that are covered by the agreement are unconscionably overbroad. The covered disputes for this arbitration agreement include: • “[A]ny and all disputes, claims or controversies between the parties, <u>including but not limited</u> to any dispute arising out of or relating to this Agreement, the employment relationship between the parties. or the formation or termination of the employment relationship . . .” (Montes Dec., Ex. 1 [emphasis added].) • “[A]ny claims that the Company may have against Employee, or that Employee may have against the Company and/or any of its officers, directors, employees, owners, agents, representatives, benefit plans, sponsors, fiduciaries, agents, parents, subsidiaries, or affiliated entities.” (<i>Id.</i> [emphasis added].) • “[A]ll past, current, and future claims, including any pending litigation, for: wrongful termination; breach of any contract or covenant, express or implied; breach of any duty owed to Employee by Company or to Company by Employee: personal, physical or emotional injury (excluding claims covered under the Workers’ Compensation Act): fraud, misrepresentation, defamation, and any other tort claims; wages or other compensation due; penalties: benefits: reimbursement of expenses; discrimination or harassment, including but not limited to discrimination or harassment based on race, sex, color, pregnancy, religion, national origin, ancestry, age, marital status, physical disability, mental disability, medical condition, or sexual orientation; retaliation: violation of any local, state, or federal constitution, statute, law, ordinance or regulation (as originally enacted and as amended), including but not limited to Title VII of
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		the Civil Rights Act of 1964. Age Discrimination in Employment Act of 1967, Americans With Disabilities Act, Fair Labor Standards Act, Employee Retirement Income Security Act, Immigration Reform and Control Act, Consolidated Omnibus Budget Reconciliation Act, Family and Medical Leave Act, California Fair Employment and Housing Act, California Family Rights Act, California Labor Code, California Civil Code, and the California Wage Orders.” (<i>Id.</i> [emphasis added].) The broad scope of this arbitration agreement is emphasized by the statement that: “BY SIGNING THIS AGREEMENT, THE PARTIES HEREBY WAIVE THEIR RIGHT TO HAVE <u>ANY DISPUTE, CLAIM OR CONTROVERSY DECIDED BY A JUDGE OR JURY IN A COURT.</u>” (Montes Dec., Ex. 1 [emphasis added].) An agreement is substantively unconscionable when there is a “lack of a 'modicum of bilaterality,' wherein the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.” (<i>Little v. Auto Stiegler, Inc.</i> (2003) 29 Cal. 4th 1064, 1072.) <i>Cook v. Univ. of S. California</i> (2024) 102 Cal. App. 5th 312, held that an arbitration agreement between the University of Southern California (“USC”) and one of its employees was unconscionable because of its overly broad scope of claims, indefinite duration and requirement that the employee arbitrate claims against USC’s affiliates without any mutual arbitration requirement for the affiliates. “The plain language of the arbitration agreement thus provides a significant benefit to [defendant employer’s] related entities without any reciprocal benefit to [plaintiff employee].” (<i>Id.</i> at 328.) Courts have deemed unconscionable broad arbitration agreement that require an employee to “arbitrate claims that are unrelated to her employment” with the defendant employer. (<i>Id.</i> at 321 [discussing an agreement that requires the arbitration of “all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.”].) “The agreement in <i>Cook</i> was unconscionable in part because of the multifarious ways in which a claim against USC “completely unrelated to [Cook's] employment” could arise.” (<i>Ayala-Ventura v. Superior Ct. of Fresno Cnty.</i> (2026) 119 Cal. App. 5th 241, 257.) Thus,
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	“[t]he various potential claims that could arise against USC together with the agreement's infinite duration made it unconscionable.” (<i>Id.</i>) “[T]he unconscionability doctrine is concerned . . . with terms that are ‘unreasonably favorable to the more powerful party.’” (<i>Stoker v. Blue Origin, LLC</i> (2026) 120 Cal. App. 5th 91, 107.) Courts have found language similar to the language in this agreement as overbroad. (<i>Id.</i> [unconscionable agreement required arbitration of “<i>any and all claims, disputes, or controversies between the Company and me</i>, including, <i>without limitation</i>, claims arising out of or relating to my employment application and/or hiring process, employment with the Company, and/or any termination of my employment ... tort claims [and] breach of contract claims.”]; <i>id.</i> [“Company” is “defined to include not only Blue Origin, but also its “parent, subsidiaries, affiliates, successors or assigns, as well as their current and former officers, directors, employees and agents.”].) An arbitration agreement is overbroad if “it applies to <i>any claim</i> that might arise <i>at any time</i> between [plaintiff employee] and [defendant employer] <i>or</i> its parent, subsidiaries, affiliates, successors or assigns, <i>or</i> employees of any of these entities.” (<i>Id.</i> at 108.) Further, it is substantively unconscionable and overbroad for an arbitration agreement to include a requirement that the plaintiff employee “agree[] to arbitrate any claim that arises out of the employment context ‘or any other interaction/relationship we had, have or may have in the future.’” (<i>Phan v. Knight Sacramento SU Inc.</i> (2026) 121 Cal. App. 5th 641, 655.) The court finds that the subject arbitration agreement contains all of the hallmarks that demonstrate that it is unconscionably overbroad and one-sided. Defendant argues that the arbitration agreement should be read to limit claims to employment-related disputes, but that goes against the explicit language in the agreement that states that is not limited to employment-related disputes, and in fact covers a wide range of other non-employment-related claims. “Where a contract is susceptible to two interpretations, one which renders it valid and the other which renders it void, a court should select the interpretation that makes the contract valid.” (<i>Ayala-Ventura v. Superior Ct.</i> (2026) 119 Cal. App. 5th 241, 257.) “Construing the Agreement in a manner that avoids unconscionability, [a court may] interpret the Agreement as applying to only employment-related claims.” (<i>Id.</i>) However, the
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		court finds that the language in this arbitration agreement makes clear that non-employment-related claims are covered by the agreement, and there is no similar ambiguity. Further, the <i>Ayala-Ventura</i> court narrowed the ambiguous language to include only employment-related claims in part because “[g]iven [the defendant] solely provides commercial janitorial services, [the court was] hard-pressed to discern how a [v]ast range of claims completely unrelated to [plaintiff’s] employment could arise[.]” (<i>Id.</i> at 257.) Here, Defendant “is in the business of venue management,” and “manages and operates the Honda Center, an entertainment and sports venue,” wherein a vast range of non-employment-related claims may arise, for example, if Plaintiff were present as an attendee at the venue and not as an employee. (Montes Dec. ¶ 11.) Second, the arbitration agreement must be read in conjunction with the C&P Agreement that was also included in Plaintiff’s onboarding package, and together they evidence further lack of mutuality. “Several contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction, are to be taken together.” (Cal. Civ. Code § 1642.) The C&P Agreement states: “Employee recognizes and agrees that a breach of any or all of the provisions of Sections 1 through 6 of this Agreement will constitute immediate and irreparable harm to the Company for which damages cannot be readily calculated and for which damages are an inadequate remedy. Employee acknowledges that the Company shall be entitled to injunctive and/or declaratory relief. Employee further acknowledges that by seeking injunctive and/or declaratory relief, the Company will not waive or otherwise compromise its ability to obtain monetary or compensatory damages.” (Szmanda Dec., Ex. 3 § 7.) “It is the desire and intent of the Parties that the provisions of this Agreement shall be enforced to the fullest extent permissible under the laws and public policies applied in each jurisdiction in which enforcement is sought.” (<i>Id.</i> § 10.2.) “The prevailing Party in any litigation concerning this Agreement shall be entitled to an award of a reasonable sum as and for attorneys’ fees and costs of suit.” (<i>Id.</i> § 10.6.) Plaintiff contends that the C&P Agreement preserves court access for Defendant’s likely confidentiality, intellectual-property, and competition claims while predetermining irreparable harm, inadequacy of damages, and Defendant’s entitlement to equitable relief.
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		“Courts routinely hold that employer-drafted arbitration agreements are unconscionable if they compel arbitration of claims most likely to be brought by employees, while exempting from arbitration claims most likely to be brought by the employer.” (<i>Stoker</i>, 120 Cal. App. 5th at 108.) “[I]t is unfairly one-sided for an employer with superior bargaining power to impose arbitration on the employee as plaintiff but not to accept such limitations when it seeks to prosecute a claim against the employee . . . If the arbitration system established by the employer is indeed fair, then the employer as well as the employee should be willing to submit claims to arbitration.” (<i>Id.</i> at 109.) “Without reasonable justification for this lack of mutuality, arbitration appears less as a forum for neutral dispute resolution and more as a means of maximizing employer advantage.” (<i>Id.</i>) “Claims for trade secret violations, trademark infringement, breach of fiduciary duty, breach of proprietary information, confidentiality obligations, and non-solicitation agreements are most likely to be brought by an employer, not an employee.” (<i>Id.</i> at 110.) As applied here, the agreements read together require Plaintiff to arbitrate the claims he is most likely to assert against Defendant and Defendant’s affiliates, while preserving a judicial venue and other benefits for claims most likely to be brought by Defendant against Plaintiff. Accordingly, these agreements are substantively unconscionable. Third, there are terms in the C&P Agreement that are contrary to California law rendering the agreements unconscionable. The C&P Agreement unlawfully “[r]equire[s] an employee to sign a waiver or other document that purports to deny the employee the right to disclose information about the employer’s working conditions.” (Cal. Lab. Code § 232.5(b).) The C&P Agreement includes in its definition of Confidential Information: employee compensation, labor relations, employee lists, training materials and information, methods of doing business, costs, operations, financial information, and “any other confidential information of any kind” relating to Defendant, its affiliates, customers, suppliers, or vendors. (Szmanda Dec., Ex. 3 § 3.1.) On the other hand, the C&P Agreement also states: “Nothing herein shall prohibit employees from discussing their wages, benefits, and other terms of employment as permitted by law[.]” (<i>Id.</i> § 3.3.) The court finds that these terms, read together, still improperly limit disclosure of working conditions by an employee outside of wages, benefits and other terms of employment, in violation of Lab. Code § 232.5(b).
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		The C&P Agreement also implicates an unlawful restraint on work. “[E]very contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void.” (Cal. Bus. & Prof. Code § 16600.) Courts invalidate agreements containing “overly restrictive provisions [that] operate as a de facto noncompete provision,” when “they plainly bar [the employee] in perpetuity from doing any work in [his] field[.]” (<i>Brown v. TGS Mgmt. Co., LLC</i> (2020) 57 Cal. App. 5th 303, 319.) Here, the agreement deems as Confidential Information wide swaths of information including methods of doing business, strategies, operations, labor relations, training materials and information processes, techniques, concepts, processes and methodology, and “any other confidential information of any kind, nature or description, tangible or intangible, in whatever form, relating to the Company, the Company's affiliates, and/or any of their customers, suppliers and/or vendors.” (Szmanda Dec., Ex. 3 § 3.1.) The C&P Agreement requires that “Employee will not at any time, while employed by the Company or at any time thereafter, use, divulge, disclose and/or communicate, either directly or indirectly, in any manner whatsoever, any Confidential Information to any person or entity without the prior written authorization of the Company's Vice President of Human Resources.” (<i>Id.</i> § 3.3 [emphasis added].) While the C&P Agreement states that an employee “is not . . . restricted from being employed by or engaged in any type of business following the termination” of employment, the broad language restricting what confidential information Plaintiff may use in effect limits his ability to work as a safety officer after his termination of employment. (Szmanda Dec., Ex. 3 § 4.2.) Fourth, the arbitration agreement also improperly suggests that Plaintiff cannot recover statutory costs he would otherwise be able to recover in court. The arbitration agreement states: “Employee shall be responsible for paying Employee's own other costs for the arbitration, including, but not limited to, attorneys’ fees, witness fees, transcript fees and other litigation expenses that Employee would otherwise be required to bear in a court action.” (Montes Dec., Ex. 1.) “[A]n arbitration agreement may not limit statutorily imposed remedies such as punitive damages and attorney fees[.]” (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 103.) “[W]hen an employer imposes mandatory
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	arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any <i>type</i> of expense that the employee would not be required to bear if he or she were free to bring the action in court.” (<i>Id.</i> at 110-111.) An agreement is “substantively unconscionable [when] it requires the parties to bear their own attorney fees, [if plaintiff’s] statutory wage claims would entitle her to recover her attorney fees if she prevails.” (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal. App. 4th 227, 250.) Defendant argues that the employee is not precluded from recovering statutory costs because the arbitration agreement states: “Employee shall not be required to pay any type amount of expense if such requirement would invalidate this Agreement or would otherwise be contrary to the law as it exists at the time of arbitration.” (Montes Dec., Ex. 1.) Defendant also argues that the arbitrator “is authorized to award any remedy or relief available under applicable law that the arbitrator deems just and equitable, including any remedy or relief that would have been available to the parties had the matter been heard in a court,” which would include statutory costs. (<i>Id.</i>) Defendant contends that the costs the employee must pay are limited to those the “Employee would otherwise be required to bear in a court action,” which would not include any statutory costs. However, the court finds that all of this qualifying language does not take away from the impression that the employee would have to bear his own costs. (<i>Hasty v. Am. Auto. Assn. etc.</i> (2023) 98 Cal. App. 5th 1041, 1062 [“The fact that the provision applies to only the ‘extent permitted by law’ does not save it because the employee would have no way of knowing what would be covered or not covered by this provision.”].) Fifth, the arbitration agreement is substantively unconscionable to the extent it limits Plaintiff’s ability to bring representative PAGA and ERISA claims. “[A] predispute categorical waiver of the right to bring a PAGA action is unenforceable.” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1117.) The arbitration agreement states: “THE PARTIES FURTHER AGREE THAT NEITHER PARTY MAY BRING, PURSUE, OR ACT AS A PLAINTIFF OR REPRESENTATIVE IN ANY PURPORTED REPRESENTATIVE PROCEEDING OR ACTION, OR OTHERWISE PARTICIPATE IN SUCH REPRESENTATIVE PROCEEDING OR ACTION OTHER THAN ON AN INDIVIDUAL BASIS <u>EXCEPT TO THE</u>
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		<u>EXTENT THIS PROVISION IS UNENFORCEABLE AS A MATTER OF LAW.</u>” (Montes Dec., Ex. 1 [emphasis added].) Defendant argues that it can compel individual PAGA claims to arbitration while representative claims may proceed separately, pointing to the provision that “ANY REPRESENTATIVE CLAIMS THAT ARE FOUND NOT SUBJECT TO ARBITRATION . . . SHALL BE RESOLVED IN COURT AND ARE STAYED PENDING THE OUTCOME OF THE ARBITRATION.” (Montes Dec., Ex. 1.) However, as stated above, an unconscionable provision is not saved when an “employee would have no way of knowing what would be covered or not covered by this provision.” (<i>Hasty</i>, 98 Cal. App. 5th at 1062.) In light of the procedural unconscionability associated with the arbitration agreement and multiple substantively unconscionable provisions in the arbitration agreement and C&P Agreement, the court declines to sever the unconscionable terms, and instead deems the arbitration agreement unconscionable and unenforceable. Based on the foregoing, Defendant’s Motion to Compel Arbitration is DENIED. Defendant’s request to dismiss the action is DENIED AS MOOT. Defendant is ordered to give notice of this ruling.
10	30-2026-01557156 Wagner vs. Anaheim Arena Management, LLC	Defendant Anaheim Arena Management, LLC’s (“Defendant”) Motion to Compel Individual Arbitration of Plaintiff Nicholas Wagner’s (“Plaintiff”) Individual PAGA Claim to Arbitration and Stay Non-Individual PAGA Claim is DENIED. The court OVERRULES Defendant’s objections to Plaintiff Nicholas Wagner’s Declaration as there is sufficient foundation for his statements, and Defendant’s objections are essentially disputes as to the credibility and merit of Plaintiff’s statements, not their admissibility. The court declines to rule on Defendant’s objection to Plaintiff’s counsel, Brett Szmanda’s Declaration, as his description of the checklist document is irrelevant to the court’s ruling. The court concludes that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff.

		(CCP § 1281.2.) Defendant provides the declaration of Angel Montes, Vice President of Talent Acquisition & Team Member Experience for Defendant, who states that Plaintiff “signed a Mutual Agreement to Arbitrate Claims.” (Montes Dec. ¶ 2, Ex. 1.) While Plaintiff challenges the date listed on the arbitration agreement as August 28, 2021, when the agreement was signed on August 26, 2021, the court reads the date written in the signature section as August 26, 2021. (<i>Id.</i> at p. 3.) Further, Plaintiff does not dispute that it is his signature on the document. (Wagner Dec. ¶ 13 [“I recognize the signature on that document as mine . . .”].) It is undisputed that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. “The arbitration agreement states: ‘The parties agree that this Agreement is governed by the Federal Arbitration Act. 9 U.S.C. §§ 1, et seq. The parties also understand and agree that the Company is engaged in transactions involving interstate commerce.’” (Montes Dec., Ex. 1.) Defendant’s business also involves interstate commerce as they use vendors outside of California, contract with performers from outside of California, and attendees from outside of California attend its events. (Montes Dec. ¶ 11.) The court finds that these facts demonstrate that Defendant’s business activities substantially affect interstate commerce, and therefore the FAA applies to the subject arbitration agreement. The court also finds that the subject arbitration agreement, read together with the CONFIDENTIALITY & PROPRIETARY RIGHTS AGREEMENT (“C&P Agreement”) signed by Plaintiff during onboarding along with the arbitration agreement, is unconscionable and unenforceable. In <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “‘generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening’ the FAA’ or California law.” (<i>Id.</i> at 125; <i>accord AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339.) “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be
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		Act, California Labor Code, California Civil Code, and the California Wage Orders.” (<i>Id.</i> [emphasis added].) The broad scope of this arbitration agreement is emphasized by the statement that: “BY SIGNING THIS AGREEMENT, THE PARTIES HEREBY WAIVE THEIR RIGHT TO HAVE <u>ANY DISPUTE, CLAIM OR CONTROVERSY DECIDED BY A JUDGE OR JURY IN A COURT.</u>” (Montes Dec., Ex. 1 [emphasis added].) An agreement is substantively unconscionable when there is a “lack of a 'modicum of bilaterality,' wherein the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration.” (<i>Little v. Auto Stiegler, Inc.</i> (2003) 29 Cal. 4th 1064, 1072.) <i>Cook v. Univ. of S. California</i> (2024) 102 Cal. App. 5th 312, held that an arbitration agreement between the University of Southern California (“USC”) and one of its employees was unconscionable because of its overly broad scope of claims, indefinite duration and requirement that the employee arbitrate claims against USC’s affiliates without any mutual arbitration requirement for the affiliates. “The plain language of the arbitration agreement thus provides a significant benefit to [defendant employer’s] related entities without any reciprocal benefit to [plaintiff employee].” (<i>Id.</i> at 328.) Courts have deemed unconscionable broad arbitration agreement that require an employee to “arbitrate claims that are unrelated to her employment” with the defendant employer. (<i>Id.</i> at 321 [discussing an agreement that requires the arbitration of “all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.”].) “The agreement in <i>Cook</i> was unconscionable in part because of the multifarious ways in which a claim against USC “completely unrelated to [Cook's] employment” could arise.” (<i>Ayala-Ventura v. Superior Ct. of Fresno Cnty.</i> (2026) 119 Cal. App. 5th 241, 257.) Thus, “[t]he various potential claims that could arise against USC together with the agreement's infinite duration made it unconscionable.” (<i>Id.</i>) “[T]he unconscionability doctrine is concerned . . . with terms that are ‘unreasonably favorable to the more powerful party.’” (<i>Stoker v. Blue Origin, LLC</i> (2026) 120 Cal. App. 5th 91, 107.)
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	Courts have found language similar to the language in this agreement as overbroad. (<i>Id.</i> [unconscionable agreement required arbitration of “<i>any and all claims, disputes, or controversies between the Company and me</i>, including, <i>without limitation</i>, claims arising out of or relating to my employment application and/or hiring process, employment with the Company, and/or any termination of my employment ... tort claims [and] breach of contract claims.”]; <i>id.</i> [“Company” is “defined to include not only Blue Origin, but also its “parent, subsidiaries, affiliates, successors or assigns, as well as their current and former officers, directors, employees and agents.”].) An arbitration agreement is overbroad if “it applies to <i>any claim</i> that might arise <i>at any time</i> between [plaintiff employee] and [defendant employer] <i>or</i> its parent, subsidiaries, affiliates, successors or assigns, <i>or</i> employees of any of these entities.” (<i>Id.</i> at 108.) Further, it is substantively unconscionable and overbroad for an arbitration agreement to include a requirement that the plaintiff employee “agree[] to arbitrate any claim that arises out of the employment context ‘or any other interaction/relationship we had, have or may have in the future.’” (<i>Phan v. Knight Sacramento SU Inc.</i> (2026) 121 Cal. App. 5th 641, 655.) The court finds that the subject arbitration agreement contains all of the hallmarks that demonstrate that it is unconscionably overbroad and one-sided. Defendant argues that the arbitration agreement should be read to limit claims to employment-related disputes, but that goes against the explicit language in the agreement that states that is <u>not limited to</u> employment-related disputes, and in fact covers a wide range of other non-employment-related claims. “Where a contract is susceptible to two interpretations, one which renders it valid and the other which renders it void, a court should select the interpretation that makes the contract valid.” (<i>Ayala-Ventura v. Superior Ct.</i> (2026) 119 Cal. App. 5th 241, 257.) “Construing the Agreement in a manner that avoids unconscionability, [a court may] interpret the Agreement as applying to only employment-related claims.” (<i>Id.</i>) However, the court finds that the language in this arbitration agreement makes clear that non-employment-related claims are covered by the agreement, and there is no similar ambiguity. Further, the <i>Ayala-Ventura</i> court narrowed the ambiguous language to include only employment-related claims in part because “[g]iven [the defendant] solely provides commercial janitorial services, [the court was] hard-pressed to discern how a [v]ast range of claims
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	completely unrelated to [plaintiff's] employment could arise[.]” (<i>Id.</i> at 257.) Here, Defendant “is in the business of venue management,” and “manages and operates the Honda Center, an entertainment and sports venue,” wherein a vast range of non-employment-related claims may arise, for example, if Plaintiff were present as an attendee at the venue and not as an employee. (Montes Dec. ¶ 11.) Second, the arbitration agreement must be read in conjunction with the C&P Agreement that was also included in Plaintiff’s onboarding package, and together they evidence further lack of mutuality. “Several contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction, are to be taken together.” (Cal. Civ. Code § 1642.) The C&P Agreement states: “Employee recognizes and agrees that a breach of any or all of the provisions of Sections 1 through 6 of this Agreement will constitute immediate and irreparable harm to the Company for which damages cannot be readily calculated and for which damages are an inadequate remedy. Employee acknowledges that the Company shall be entitled to injunctive and/or declaratory relief. Employee further acknowledges that by seeking injunctive and/or declaratory relief, the Company will not waive or otherwise compromise its ability to obtain monetary or compensatory damages.” (Szmanda Dec., Ex. 3 § 7.) “It is the desire and intent of the Parties that the provisions of this Agreement shall be enforced to the fullest extent permissible under the laws and public policies applied in each jurisdiction in which enforcement is sought.” (<i>Id.</i> § 10.2.) “The prevailing Party in any litigation concerning this Agreement shall be entitled to an award of a reasonable sum as and for attorneys’ fees and costs of suit.” (<i>Id.</i> § 10.6.) Plaintiff contends that the C&P Agreement preserves court access for Defendant’s likely confidentiality, intellectual-property, and competition claims while predetermining irreparable harm, inadequacy of damages, and Defendant’s entitlement to equitable relief. “Courts routinely hold that employer-drafted arbitration agreements are unconscionable if they compel arbitration of claims most likely to be brought by employees, while exempting from arbitration claims most likely to be brought by the employer.” (<i>Stoker</i>, 120 Cal. App. 5th at 108.) “[I]t is unfairly one-sided for an employer with superior bargaining power to impose arbitration on the employee as plaintiff but not to accept
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		such limitations when it seeks to prosecute a claim against the employee . . . If the arbitration system established by the employer is indeed fair, then the employer as well as the employee should be willing to submit claims to arbitration.” (<i>Id.</i> at 109.) “Without reasonable justification for this lack of mutuality, arbitration appears less as a forum for neutral dispute resolution and more as a means of maximizing employer advantage.” (<i>Id.</i>) “Claims for trade secret violations, trademark infringement, breach of fiduciary duty, breach of proprietary information, confidentiality obligations, and non-solicitation agreements are most likely to be brought by an employer, not an employee.” (<i>Id.</i> at 110.) As applied here, the agreements read together require Plaintiff to arbitrate the claims he is most likely to assert against Defendant and Defendant’s affiliates, while preserving a judicial venue and other benefits for claims most likely to be brought by Defendant against Plaintiff. Accordingly, these agreements are substantively unconscionable. Third, there are terms in the C&P Agreement that are contrary to California law rendering the agreements unconscionable. The C&P Agreement unlawfully “[r]equire[s] an employee to sign a waiver or other document that purports to deny the employee the right to disclose information about the employer’s working conditions.” (Cal. Lab. Code § 232.5(b).) The C&P Agreement includes in its definition of Confidential Information: employee compensation, labor relations, employee lists, training materials and information, methods of doing business, costs, operations, financial information, and “any other confidential information of any kind” relating to Defendant, its affiliates, customers, suppliers, or vendors. (Szmanda Dec., Ex. 3 § 3.1.) On the other hand, the C&P Agreement also states: “Nothing herein shall prohibit employees from discussing their wages, benefits, and other terms of employment as permitted by law[.]” (<i>Id.</i> § 3.3.) The court finds that these terms, read together, still improperly limit disclosure of working conditions by an employee outside of wages, benefits and other terms of employment, in violation of Lab. Code § 232.5(b). The C&P Agreement also implicates an unlawful restraint on work. “[E]very contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void.” (Cal. Bus. & Prof. Code § 16600.) Courts invalidate agreements containing “overly restrictive provisions [that] operate as a de facto noncompete provision,” when “they
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	plainly bar [the employee] in perpetuity from doing any work in [his] field[.]” (<i>Brown v. TGS Mgmt. Co., LLC</i> (2020) 57 Cal. App. 5th 303, 319.) Here, the agreement deems as Confidential Information wide swaths of information including methods of doing business, strategies, operations, labor relations, training materials and information processes, techniques, concepts, processes and methodology, and “any other confidential information of any kind, nature or description, tangible or intangible, in whatever form, relating to the Company, the Company's affiliates, and/or any of their customers, suppliers and/or vendors.” (Szmanda Dec., Ex. 3 § 3.1.) The C&P Agreement requires that “Employee will not at any time, while employed by the Company or at any time thereafter, use, divulge, disclose and/or communicate, either directly or indirectly, in any manner whatsoever, any Confidential Information to any person or entity without the prior written authorization of the Company's Vice President of Human Resources.” (<i>Id.</i> § 3.3 [emphasis added].) While the C&P Agreement states that an employee “is not . . . restricted from being employed by or engaged in any type of business following the termination” of employment, the broad language restricting what confidential information Plaintiff may use in effect limits his ability to work as a safety officer after his termination of employment. (Szmanda Dec., Ex. 3 § 4.2.) Fourth, the arbitration agreement also improperly suggests that Plaintiff cannot recover statutory costs he would otherwise be able to recover in court. The arbitration agreement states: “Employee shall be responsible for paying Employee's own other costs for the arbitration, including, but not limited to, attorneys’ fees, witness fees, transcript fees and other litigation expenses that Employee would otherwise be required to bear in a court action.” (Montes Dec., Ex. 1.) “[A]n arbitration agreement may not limit statutorily imposed remedies such as punitive damages and attorney fees[.]” (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 103.) “[W]hen an employer imposes mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any <i>type</i> of expense that the employee would not be required to bear if he or she were free to bring the action in court.” (<i>Id.</i> at 110-111.) An agreement is “substantively unconscionable [when] it requires the parties to bear their own attorney fees, [if plaintiff’s] statutory wage claims would entitle
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	her to recover her attorney fees if she prevails.” (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal. App. 4th 227, 250.) Defendant argues that the employee is not precluded from recovering statutory costs because the arbitration agreement states: “Employee shall not be required to pay any type amount of expense if such requirement would invalidate this Agreement or would otherwise be contrary to the law as it exists at the time of arbitration.” (Montes Dec., Ex. 1.) Defendant also argues that the arbitrator “is authorized to award any remedy or relief available under applicable law that the arbitrator deems just and equitable, including any remedy or relief that would have been available to the parties had the matter been heard in a court,” which would include statutory costs. (<i>Id.</i>) Defendant contends that the costs the employee must pay are limited to those the “Employee would otherwise be required to bear in a court action,” which would not include any statutory costs. However, the court finds that all of this qualifying language does not take away from the impression that the employee would have to bear his own costs. (<i>Hasty v. Am. Auto. Assn. etc.</i> (2023) 98 Cal. App. 5th 1041, 1062 [“The fact that the provision applies to only the ‘extent permitted by law’ does not save it because the employee would have no way of knowing what would be covered or not covered by this provision.”].) Fifth, the arbitration agreement is substantively unconscionable to the extent it limits Plaintiff’s ability to bring representative PAGA and ERISA claims. “[A] predispute categorical waiver of the right to bring a PAGA action is unenforceable.” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1117.) Such a clause is unconscionable and it is irrelevant that the plaintiff “has not brought a private attorney general action.” (<i>Hasty v. Am. Auto. Assn. etc.</i> (2023) 98 Cal. App. 5th 1041, 1063.) The arbitration agreement states: “THE PARTIES FURTHER AGREE THAT NEITHER PARTY MAY BRING, PURSUE, OR ACT AS A PLAINTIFF OR REPRESENTATIVE IN ANY PURPORTED REPRESENTATIVE PROCEEDING OR ACTION, OR OTHERWISE PARTICIPATE IN SUCH REPRESENTATIVE PROCEEDING OR ACTION OTHER THAN ON AN INDIVIDUAL BASIS <u>EXCEPT TO THE EXTENT THIS PROVISION IS UNENFORCEABLE AS A MATTER OF LAW.</u>” (Montes Dec., Ex. 1 [emphasis added].) Defendant argues that it can compel individual PAGA claims to arbitration while representative claims may proceed separately,
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		pointing to the provision that “ANY REPRESENTATIVE CLAIMS THAT ARE FOUND NOT SUBJECT TO ARBITRATION . . . SHALL BE RESOLVED IN COURT AND ARE STAYED PENDING THE OUTCOME OF THE ARBITRATION.” (Montes Dec., Ex. 1.) However, as stated above, an unconscionable provision is not saved when an “employee would have no way of knowing what would be covered or not covered by this provision.” (<i>Hasty</i>, 98 Cal. App. 5th at 1062.) While the court previously determined that the arbitration agreement was enforceable, the court was without the benefit of the C&P Agreement, Plaintiff’s statements as to procedural unconscionability, and Plaintiff’s legal arguments in opposition to this Motion. In light of the procedural unconscionability associated with the arbitration agreement and multiple substantively unconscionable provisions in the arbitration agreement and C&P Agreement, the court declines to sever the unconscionable terms, and instead deems the arbitration agreement unconscionable and unenforceable. Based on the foregoing, Defendant’s Motion to Compel Arbitration is DENIED. Defendant’s request to stay the action is DENIED AS MOOT. Defendant is ordered to give notice of this ruling.
11	30-2026-01542516 Gardner vs. Safran Cabin Inc.	Defendant Safran Cabin Inc.’s (“Defendant”) Motion to Compel Arbitration, Dismiss Class Claims and Stay Proceedings is GRANTED IN PART. IT IS ORDERED THAT Plaintiff’s individual claims (including Plaintiff’s individual PAGA claim) are compelled to arbitration, Plaintiff’s class claims are DISMISSED, and the case is STAYED pending completion of arbitration. It is undisputed that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff. (CCP § 1281.2.) It is also undisputed that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. <u>A. Delegation of Authority to Arbitrator</u>

	However, the parties dispute whether the court or the arbitrator may decide questions of arbitrability of the claims, as well as enforcement and unconscionability of the arbitration agreement. “[P]arties may agree to have an arbitrator decide not only the merits of a particular dispute but also ‘gateway’ questions of ‘arbitrability,’ such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy.” (<i>Henry Schein, Inc. v. Archer & White Sales, Inc.</i> (2019) 586 U.S. 63, 67–68.) “When the parties’ contract delegates the arbitrability question to an arbitrator, a court may not override the contract.” (<i>Id.</i> at 68.) “In those circumstances, a court possesses no power to decide the arbitrability issue.” (<i>Id.</i>) “[P]arties may delegate threshold arbitrability questions to the arbitrator, so long as the parties’ agreement does so by ‘clear and unmistakable’ evidence.” (<i>Id.</i> at 69.) Delegation is not clear and unmistakable if “one provision of the arbitration agreement stated that issues of enforceability or voidability were to be decided by the arbitrator, [but] another provision indicated that the court might find a provision unenforceable.” (<i>Parada v. Superior Ct.</i> (2009) 176 Cal. App. 4th 1554, 1566.) The arbitration agreement states: “The Parties mutually agree to resolve all disputes, claims and/or controversies between them that could be brought in court through the Arbitration Program, including but not limited to all disputes arising out of and/or relating to the Arbitration Program . . .” (Snow Dec., Ex. B at p. 2 § 3.) The arbitration agreement also states: “If a court determines that this Arbitration Program is lacking any employee protections required by law, Safran Cabin, at its sole discretion, may offer employees protections that the court deems necessary to preserve the validity and enforceability of this Arbitration Program.” (Snow Dec., Ex. B § 10 [emphasis added].) These conflicting terms, which do not mention the words interpretation, applicability, or enforceability of the arbitration agreement, are not clear and unmistakable delegation of authority to the arbitrator to decide these issues. Defendant argues that the current AAA rules state: “The arbitrator shall have the power to rule on their own jurisdiction, including any objections with respect to the existence, scope or validity of the arbitration agreement or the arbitrability of any claim or counterclaim.” (Def.’s RJN, Ex. 1 § 7(a).) However, it is undisputed that these AAA rules were not provided to Plaintiff. (Snow Dec. ¶ 6.) Defendant relies on non-binding federal cases to argue that the court should find the broad, vague language in the
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	arbitration agreement along with the AAA rules that were not provided to Plaintiff as evidence of a clear and unmistakable delegation of authority to the arbitrator. The court declines to do so. <u>B. Unconscionability/Enforceability</u> “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v. Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Id.</i>) “But they need not be present in the same degree.” (<i>Id.</i>) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (<i>Id.</i>) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (<i>Id.</i>) <u>Procedural Unconscionability</u> “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion.” (<i>Armendariz</i>, 24 Cal. 4th at 113.) “The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (<i>Id.</i>) Although adhesion alone “generally indicates only a low degree of procedural unconscionability,” the potential for overreaching in the employment context “warrants close scrutiny of the contract's terms.” (<i>Stoker v. Blue Origin, LLC</i> (2026) 120 Cal. App. 5th 91, 106.) Plaintiff objects to the fact that he did not receive a copy of the AAA rules. (Snow Dec. ¶ 6.) However, that does not make the agreement procedurally unconscionable because Plaintiff did not “identify any feature of the AAA rules that prevent fair and full arbitration.” (<i>Peng v. First Republic Bank</i> (2013) 219 Cal. App. 4th 1462, 1472 [“[F]ailure to attach the AAA rules, standing
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	alone, is insufficient grounds to support a finding of procedural unconscionability.”].) However, as this arbitration agreement is a contract of adhesion required as a condition of employment, there is some degree of procedural unconscionability. “A greater degree of procedural unconscionability is present when the circumstances of a contract's formation evince ‘oppression’ . . . beyond that usually present in a contract of adhesion.” (<i>Fuentes v. Empire Nissan, Inc.</i> (2026) 19 Cal. 5th 93, 104.) “Oppression occurs where a contract involves lack of negotiation and meaningful choice.” (<i>Id.</i>) When “a prospective employer directs an applicant to sign an arbitration agreement as part of the employment application process, the economic pressure on the applicant to sign the agreement is particularly high.” (<i>Id.</i>) <u>Substantive Unconscionability</u> Plaintiff contends that the arbitration agreement is substantively unconscionable because it contains a wholesale PAGA waiver. However, courts have stated that while California prohibits “wholesale waiver of PAGA claims,” the courts tend to sever the waiver, apply the arbitration agreement to the individual PAGA claim and stay the remaining representative PAGA claim. (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1114.) Thus, this waiver does not evidence substantive unconscionability. Plaintiff argues that the agreement is substantively unconscionable because it is overly broad in scope, of indefinite duration, and lacks mutuality. The agreement requires that Plaintiff arbitrate claims not only against Defendant but also “each of the foregoing Safran Cabin entities and its officers, directors, employees, owners, shareholders, members, agents, representatives, plans, sponsors, fiduciaries, gents, attorneys, parents, subsidiaries, and affiliated entities.” The claims subject to arbitration include: “[A]ny and all disputes and/or Claims against the other that could be brought in a court, except those expressly excluded herein or otherwise excluded by law, including but not limited to: all past, present, and future claims, including but not limited to: Title VII of the Civil Rights Act of 1964; the Age Discrimination m Employment Act of 1967; the Americans With Disabilities Act;
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	the Rehabilitation Act of 1973; the Fair Labor Standards Act; the Equal Pay Act of 1963; the Lilly Ledbetter Fair Pay Act of 2009; the Employee Retirement Income Security Act (to the extent allowed by law); the Consolidated Omnibus Budget Reconciliation Act; the Family and Medical Leave Act; the Genetic Information Nondiscrimination Act of 2008; the Fair Credit Reporting Act, the Uniformed Services Employment and Reemployment Rights Act of 1994; Section 1981 through 1988 of Title 42 of the United States Code; any federal, state, or local anti-discrimination laws relating to wrongful termination, discrimination, harassment, retaliation, breach of contract/covenant, trade secrets, emotional distress, fraud, misrepresentation, defamation, tort claims, minimum wage, compensation for time worked, overtime, bonuses, meal/rest breaks, wage statements, reimbursement, penalties, benefits, background and credit checks, and violations of any federal, state, local, or other government constitution, statute, ordinance or regulation; and, all claims based on any public policy or common law (including California’s Private Attorney General Act (“PAGA”) to the extent allowed by law)(collectively the “Claims”); however, the term “Claims” as used herein does not include any claim or claims that cannot be arbitrated under the law, including but not limited to workers’ compensation, unemployment compensation, state or federal disability benefits, stock option and welfare plans (if they contain some form of a grievance, arbitration, or other procedure for resolution of disputes under the plan), and certain whistleblower and/or sexual harassment claims, pursuant to applicable law.” An agreement is substantively unconscionable when there is a “lack of a ‘modicum of bilaterality,’ wherein the employee’s claims against the employer, but not the employer’s claims against the employee, are subject to arbitration.” (<i>Little v. Auto Stiegler, Inc.</i> (2003) 29 Cal. 4th 1064, 1072.) <i>Cook v. Univ. of S. California</i> (2024) 102 Cal. App. 5th 312, held that an arbitration agreement between the University of Southern California (“USC”) and one of its employees was unconscionable because of its overly broad scope of claims, indefinite duration and requirement that the employee arbitrate claims against USC’s affiliates without any mutual arbitration requirement for the affiliates. “The plain language of the arbitration agreement thus provides a significant benefit to [defendant employer’s] related entities without any reciprocal benefit to [plaintiff employee].” (<i>Cook</i>, 102 Cal. App. 5th at 328.) Courts have deemed unconscionable broad arbitration agreements that require an employee to “arbitrate claims that are unrelated to her
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	employment” with the defendant employer. (<i>Id.</i> at 321 [discussing an agreement that requires the arbitration of “all claims, whether or not arising out of Employee’s University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee.”].) However, courts looking at <i>Cook</i> have stated that its holding is contingent on the broad reach of USC’s operations and the broad scope of claims that could potentially arise between the plaintiff employee and an affiliate that would have nothing to do with the employment relationship. “The agreement in <i>Cook</i> was unconscionable in part because of the multifarious ways in which a claim against USC “completely unrelated to [Cook’s] employment” could arise.” (<i>Ayala-Ventura v. Superior Ct. of Fresno Cnty.</i> (2026) 119 Cal. App. 5th 241, 257.) Thus, “[t]he various potential claims that could arise against USC together with the agreement’s infinite duration made it unconscionable.” (<i>Id.</i> [distinguishing agreement from <i>Cook</i> by stating “[n]othing in the record indicates CCS’s operations have anything like the well-known, broad capacity of USC’s reach”].) <i>Cook</i> does not stand for finding substantive unconscionability simply because an arbitration agreement has similar terms to the agreement in <i>Cook</i>. Those terms must be viewed within the context in which USC operates. As one court stated: “We are not convinced the Agreement’s purported failure to require [defendant’s affiliates] to arbitrate their claims against [plaintiff] results in a lack of mutuality between the contracting parties.” (<i>Id.</i> at 259.) “The Agreement is between [defendant] and [plaintiff]; it is not between [plaintiff] and [defendant’s affiliates].” (<i>Id.</i>) The court finds that while the language in the arbitration agreement regarding the scope of covered claims is broad, it can be limited and the remainder of the agreement enforced. “[N]o bright line rule <i>requires</i> a court to refuse enforcement if a contract has more than one unconscionable term.” (<i>Ramirez v. Charter Commc’ns, Inc.</i> (2024) 16 Cal. 5th 478, 516.) “At the outset, a court should ask whether ‘the central purpose of the contract is tainted with illegality.’” (<i>Id.</i>) “If so, the contract cannot be cured, and the court should refuse to enforce it.” (<i>Id.</i>) Here, there is no evidence that central purpose of the arbitration
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	agreement is tainted with illegality. The primary issue is that the scope of the agreement is too broad. “If that is not the case, the court should go on to ask first, whether the contract's unconscionability <i>can</i> be cured purely through severance or restriction of its terms, or whether reformation by augmentation is necessary.” (<i>Ramirez</i>, 16 Cal. 5th at 516.) “If no ‘reformation is required,’ the offending provision can be severed or limited, and ‘the rest of the arbitration agreement left intact,’ then severance or restriction is the preferred course for provisions that are collateral to the agreement's main purpose.” (<i>Id.</i>) “Even if a contract <i>can</i> be cured, the court should also ask whether the unconscionability <i>should</i> be cured through severance or restriction because the interests of justice would be furthered by such actions.” (<i>Id.</i>) The court finds that the arbitration agreement can be cured by limiting the scope of covered claims to only employment-related disputes, and finds that the interests of justice would support the narrowing of the scope of claims as the remaining agreement is not otherwise unconscionable. As there is only some degree of procedural unconscionability, and as the substantively unconscionable terms can be limited, the court finds that the arbitration agreement is enforceable. Accordingly, Defendant’s Motion to Compel Arbitration is GRANTED as to Plaintiff’s individual claims. C. <u>Arbitration of Individual PAGA Claim</u> “When an action includes arbitrable and nonarbitrable components, the resulting bifurcated proceedings are not severed from one another; rather, the court may ‘stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement.’” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1125-1126 [when an arbitration agreement “requires the trial court to bifurcate and order individual PAGA claims to arbitration when an appropriate arbitration agreement exists, the individual PAGA claims in arbitration remain part of the same lawsuit as the representative claims remaining in court”].) Accordingly, Plaintiff’s individual PAGA claim is compelled to arbitration. D. <u>Class Waiver</u>
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		The arbitration agreement states: “<u>NO CLASS ACTIONS COLLECTIVE ACTION AND/OR REPRESENTATIVE ACTIONS. THE PARTIES AGREE THAT EACH MAY FILE CLAIMS AGAINST THE OTHER ONLY IN THEIR INDIVIDUAL CAPACITIES, AND MAY NOT FILE CLAIMS AS A PLAINTIFF IN, AND/OR PARTICIPATE AS A CLASS MEMBER IN, ANY CLASS ACTION, COLLECTIVE ACTION AND/OR REPRESENTATIVE ACTION AGAINST THE OTHER (EXCEPT FOR ANY CLASS ACTIONS, COLLECTIVE ACTIONS AND/OR REPRESENTATIVE ACTIONS THAT WERE FILED PRIOR TO SEPTEMBER 3, 2018). THE PARTIES AGREE THAT ANY CLASS ACTION, COLLECTIVE ACTION AND/OR REPRESENTATIVE CLAIMS THAT ARE FOUND NOT SUBJECT TO ARBITRATION UNDER THIS ARBITRATION PROGRAM SHALL BE RESOLVED IN COURT, AND ARE STAYED PENDING THE OUTCOME OF THE ARBITRATION. THE PARTIES AGREE THAT A COURT, NOT AN ARBITRATOR, SHALL DETERMINE WHETHER ANY CLAIMS MUST PROCEED ON A CLASS ACTION, COLLECTIVE ACTION AND/OR REPRESENTATIVE ACTION BASIS.</u>” (Snow Dec., Ex. B at p. 3 § 9.) The arbitration agreement reserves the question of whether any claim must proceed on a class action, collective action, and/or representative action basis to be decided by the court. As the arbitration agreement and the class action waiver are enforceable, the court dismisses Plaintiff’s class claims pursuant to the class action waiver. E. <u>Stay</u> Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) Accordingly, this action is stayed pending completion of arbitration. Defendant is ordered to give notice of this ruling.
12	JCCP 5426 SchoolsFirst Wage and Hour Cases	Defendant SchoolsFirst Federal Credit Union’s (“Defendant”) Motion to Compel Arbitration is GRANTED. IT IS ORDERED THAT Plaintiff Mireya Briseno’s (“Plaintiff” of “Briseno”) individual PAGA claim is compelled to arbitration, and the

	remaining representative PAGA claim is stayed pending completion of arbitration. The court concludes that there exists a valid agreement to arbitrate the individual portion of the employment-related PAGA claim asserted by Plaintiff. (CCP § 1281.2.) Plaintiff does not dispute the existence or enforceability of the arbitration agreement, only whether it requires that Plaintiff arbitrate her individual PAGA claim. Defendant’s Terms of Employment state that “Any and all disputes between you and SchoolsFirst FCU or its affiliates, successors, officers, directors, or agents, which arise out of or relate to your recruitment, employment or separation from employment shall be resolved through final and binding arbitration on an individual basis before a single neutral arbitrator under the auspices of Judicial Arbitration and Mediation Services (JAMS).” (Cano Dec., Ex. D.) “This shall include, without limitation, claims by you and claims by SchoolsFirst FCU, including disputes relating to . . . your employment by SchoolsFirst FCU or the termination thereof, . . . the California Labor Code, including claims for wages or penalties, . . . or claims under any other federal, state or local law or regulation now in existence or hereinafter enacted and as amended from time to time arising out of or concerning in any way the subject of your employment with SchoolsFirst FCU or its termination.” (<i>Id.</i>) Plaintiff argues that there is a carveout in the arbitration agreement that excludes arbitration of her entire PAGA claim (including both the individual and representative components). The Terms of Employment states: “The only claims not covered by this Agreement are . . . claims that have been expressly excluded from arbitration for example claims under the California Private Attorney General Act . . .” (Cano Dec., Ex. D.) However, that language qualifies that the “claims under the California Private Attorney General Act” are an example of “claims that have been expressly excluded from arbitration.” The only type of PAGA claim expressly excluded from arbitration is a representative PAGA claim; individual PAGA claims may be compelled to arbitration. (<i>Viking River Cruises, Inc. v. Moriana</i> (2022) 596 U.S. 639, 662.) When an arbitration agreement “simply says that ‘claims under PAGA ... are not arbitrable under this Agreement,’” and no other qualifying language, the courts find no ambiguity and hold that
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	all PAGA claims are excepted from arbitration. (<i>Duran v. EmployBridge Holding Co.</i> (2023) 92 Cal. App. 5th 59, 66.) “Civil Code section 1638 provides that the ‘language of a contract is to govern its interpretation, if the language is clear and explicit.’” (<i>Id.</i>) “[C]ourts enforce an unambiguous agreement as written rather than rewriting it to contain limitations the parties did not express.” (<i>Id.</i>) However, in <i>Duran</i>, that court stated that the defendant could have drafted the agreement to state that “only nonarbitrable PAGA claims would not be arbitrable under the agreement.” (<i>Id.</i> at 67.) The court finds that is essentially what Defendant has done in this case by qualifying the language to limit the PAGA carveout to non-arbitrable representative PAGA claims, i.e. “claims that have been expressly excluded from arbitration.” “When an action includes arbitrable and nonarbitrable components, the resulting bifurcated proceedings are not severed from one another; rather, the court may ‘stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement.’” (<i>Adolph v. Uber Techs., Inc.</i> (2023) 14 Cal. 5th 1104, 1125-1126 [when an arbitration agreement “requires the trial court to bifurcate and order individual PAGA claims to arbitration when an appropriate arbitration agreement exists, the individual PAGA claims in arbitration remain part of the same lawsuit as the representative claims remaining in court”].) Accordingly, Defendant’s Motion to Compel Arbitration is granted, Plaintiff’s individual PAGA claim is compelled to arbitration, and the remaining representative PAGA claim is stayed. The court GRANTS Plaintiff’s request for judicial notice of Judge McCormick’s August 21, 2025 Order Denying Defendant’s Motion to Compel Arbitration of the <i>Villapudua v. SchoolsFirst Federal Credit Union</i> PAGA Action (Orange County Case No. 30-2024-01400940-CU-OE-CXC) (“Villapudua PAGA Action”) from Orange County Superior Court Judge Melissa R. McCormick. (Cal. Evid. Code § 452(d).) Judge McCormick evaluated the identical language in Defendant’s arbitration agreement in the Villapudua PAGA Action and denied Defendant’s Motion to Compel Arbitration, but the facts here are distinguishable from the facts that were in front of Judge McCormick. In the Villapudua PAGA Action, “[t]he parties agree that (1) the operative complaint only asserts a representative, non individual claim under the Private Attorneys General Act (“PAGA”),” and “(2) Villapudua never pleaded an
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		“individual PAGA claim.” (Villapudua PAGA Action [ROA 79 at p. 2].) Thus, the carveout language foreclosed arbitration of the sole representative PAGA claim that was at issue. Here, the parties do not argue that Plaintiff Briseno’s PAGA Complaint consists of only a representative PAGA claim. In other words, unlike in the Villapudua PAGA Action, there is an individual PAGA claim in this action that can be compelled to arbitration. Further, in the Villapudua PAGA Action, “[d]espite plaintiff’s identification of this [carveout] issue in her opposition, defendant offered no response to this point in its reply.” (Plaintiff’s RJN, Ex. 1 at pp. 1-2 [emphasis added].) Here, Defendant has provided a substantive response to Plaintiff’s argument. Defendant is ordered to give notice of this ruling.
13	30-2026-01538632 Nunez vs. California Automobile Insurance Company	<u>Motion 1: Defendant’s Requests for Admission, Set One</u> Defendant California Automobile Insurance Company’s (“Defendant”) Motion to Deem Matters Admitted is GRANTED. IT IS ORDERED THAT the truth of any matters specified in Defendant’s Requests for Admission, Set One be deemed admitted. On March 11, 2026, Defendant served written discovery on Plaintiff’s attorney of record. (Sarni Dec. ¶ 2.) On May 6, 2026, Jorge Vera with Plaintiff’s counsel’s office requested a three-week extension of time to respond. (Sarni Dec. ¶ 4.) By email dated May 6, 2026, Defendant agreed to provide a two-week extension of time, up to and including May 20, 2026 for Plaintiff to respond to all pending discovery. (Sarni Dec. ¶ 4.) On May 20, 2026, Plaintiff did not provide any responses and also did not seek a further extension of time. (Sarni Dec. ¶ 5.) Despite remainders from Defendant, to date, Plaintiff has not provided any discovery responses. (Sarni Dec. ¶ 7.) This Motion is unopposed. “If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]” (CCP § 2033.280(a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction[.]” (CCP § 2033.280(b).) “The

		court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (CCP § 2033.280(c).) “It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (<i>Id.</i>) Based on the foregoing, it is mandatory that the court grant this Motion and Defendant’s request for monetary sanctions. However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. <u>Motion 2: Defendant’s Requests for Production of Documents, Set One</u> Defendant’s Motion to Compel Responses to Requests for Production of Documents, Set One is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall provide Defendant with complete, code-compliant responses to Defendant’s Requests for Production of Documents, Set One, without objections, and all responsive documents. “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product.” (CCP § 2031.300(a).) “The party making the demand may move for an order compelling response to the demand.” (CCP § 2031.300(b).) “Failing to respond or to submit to an authorized method of discovery” is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant’s Requests for Production of Documents, Set One, and thus this Motion is granted.
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	However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. <u>Motion 3: Defendant’s Special Interrogatories, Set One</u> Defendant’s Motion to Compel Responses to Special Interrogatories, Set One, is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall provide Defendant with complete, code-compliant responses to Defendant’s Special Interrogatories, Set One, without objections. “If a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection for work product[.]” (CCP § 2030.290(a).) “Failing to respond or to submit to an authorized method of discovery” is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant’s Special Interrogatories, Set One, and thus this Motion is granted. However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. <u>Motion 4: Defendant’s Form Interrogatories, Set One</u> Defendant’s Motion to Compel Responses to Form Interrogatories, Set One, is GRANTED. IT IS ORDERED THAT within thirty (30) days of this ruling, Plaintiff shall
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		provide Defendant with complete, code-compliant responses to Defendant’s Form Interrogatories, Set One, without objections. “If a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection for work product[.]” (CCP § 2030.290(a).) “Failing to respond or to submit to an authorized method of discovery” is a misuse of discovery subject to monetary sanctions. (CCP § 2023.010(d), 2023.030(a).) As stated above, Plaintiff failed to respond to Defendant’s Form Interrogatories, Set One, and thus this Motion is granted. However, as this Motion was unopposed, only \$610.00 in attorney’s fees have been incurred for this Motion. (Sarni Dec. ¶ 8 [stating that attorney’s fees are estimated to be \$1,220.00 based on 2 hours preparing motion and 2 hours preparing a reply and appearing at the hearing].) Thus, the court GRANTS IN PART Defendant’s request for monetary sanctions. IT IS ORDERED THAT within sixty (60) days of this ruling, sanctions in the amount of \$610.00 is payable jointly and severally by Plaintiff and Plaintiff’s counsel to Defendant. Defendant is ordered to give notice of this ruling to Plaintiff.
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